

Chief Justice's Court

Case :- WRIT - C No. - 21603 of 2023

Petitioner :- Motiram

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mani Shankar

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

1. Shri Mani Shankar Mishra, learned counsel for the petitioner, learned Standing Counsel for the state respondent no. 1 and Shri Chetan Chatterjee, learned counsel for the respondent no. 2.

2. The petitioner is aggrieved by a demand notice issued by the respondent no. 2, whereunder a sum of Rs. 1,48,574/- is stated to be recoverable as electricity dues. In substance the petitioner is depositing the bill as raised by the respondent no. 2.

3. In our opinion the petitioner can invoke the provisions of clause 6.5 of the U.P. Electricity Supply Code, 2005, for the said purpose. We permit the petitioner to file an application under the said provision within two weeks from today. In the eventuality of filing of any such application the respondent no. 2 shall pass appropriate orders within next three weeks. Meanwhile, no coercive action shall be taken against the petitioner provided the petitioner files the application within the period mentioned above.

4. With the aforesaid observations, the writ petition stands disposed of.

Order Date :- 10.7.2023

Deepak/

(Ashutosh Srivastava,J.) (Pritinker Diwaker,C.J.)